

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	21CV386366	Christopher Morales vs. Del Real Lopez	The partition referee seeks confirmation of the partition referee's sale of property. The confirmation of sale is GRANTED.
9:00 2	23CV414851	Bank of America v. John Campona	Plaintiff moves this court to allow Plaintiff to amend caption of complaint. Plaintiff's motion is GRANTED.
9:00 3	24CV446754	Lesniak vs. County of Santa Clara	See below
9:00 4	24CV454184	Erlach vs. General Motors	See below
9:00 5	24CV454605	Jenna Arruda vs. Trena Sutcliffe	Plaintiffs move this court to quash a subpoena for each of Plaintiff's medical providers. Since Plaintiff has placed her mental health at issue it appears the subpoenas are relevant. A protective order is in place. Plaintiff's motion to quash is DENIED.
9:00 6	25CV458954	Kostick & Wang, LLC vs. Jia Sung	Defendant petitions this court to compel discovery responses; deem the truth of all matters specified in requests for admissions admitted; and a motion for sanctions in the amount of \$2,480.00. These requests were served on Plaintiff on August 11, 2025. Plaintiff failed to respond. Defendant petitioned this court on January 23, 2026. Plaintiff has failed to file any objections to Defendant's petition. Defendant's petition to compel discovery responses is GRANTED. Defendant's request to deem the truth of all matters specified in its request for admissions is GRANTED. Defendant's motion for sanctions in the amount of \$2,480.00 is GRANTED.
9:00 7	25CV464655	Un Suk Heo vs. FCA US, LLC	Defendant petitions this court to compel Plaintiff to attend a deposition and produce documents. Defendant propounded this request on July 9, 2025 and had originally set a deposition date for October 6, 2025. Plaintiff later served his objection to the date on the basis of unavailability. Since then, Defendant has made several attempts to reach Defendant to set a new date and propound discovery. On December 23, 2025, Defendant filed its petition to compel. Plaintiff did not respond. Defendant's motion is GRANTED. Plaintiff is ordered to attend a deposition within thirty days of the granting of this order.
9:00 8	25CV467995	Prashant Tiwari, Phd, vs Monte Kaehr, et. al.	Off calendar
9:00 9	25CV471732	Creditors Adjustment Bureau vs. Olguin and Vazquez Landscape & Tree Service.	Plaintiff petitioned this court to compel responses to Plaintiff's first set of special interrogatories and requests monetary sanctions for not complying. Plaintiff emailed defendant his first set of special interrogatories on December 10, 2025. Defendant never responded and issued no objection to Plaintiff's petition. Plaintiff's motion to compel is GRANTED. Plaintiff's motion for monetary sanctions in the amount of \$1,875.41 is GRANTED.
9:00 10-11	25CV474448	Milz Development & Construction vs. Shawn Dean, et. al.	See below
9:00 12	25CV483492	Mario Diaz Ruiz v. Ford Motor Company, et. al.	See below

9:00 13	25CV471833	Greg Gordon vs. Lyft, Inc. et. al.	Defendant moves this Court to compel arbitration and stay proceedings. Plaintiff created a Lyft user account and agreed to arbitration should a dispute or claim arise. Plaintiff failed to file an opposition to Defendant's motion, Defendant's motion is GRANTED.
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Calendar Line 3

Case Name: *Lesniak v. County of Santa Clara, et al.*

Case No.: 24CV446754

On September 29, 2025, the Court [Hon. Pennypacker] filed an order sustaining defendants Daniel Little ("Little"), Damion Wright ("Wright") and Yazmina Letona's ("Letona") (collectively, "individual defendants") demurrer to plaintiff Alex Lesniak's ("Plaintiff") first amended complaint ("FAC") without leave to amend as to the first cause of action for violation of Labor Code section 1102.5. The Court also sustained defendant County of Santa Clara's ("County") demurrer to the first cause of action with leave to amend and Little, Wright, Letona and County's (collectively, "Defendants") demurrer to the second cause of action with leave to amend. As to County's demurrer to the first cause of action, the Court stated that "the applicable three-year statute of limitations bars action against Defendants' conduct prior to August 29, 2021," noting that "[d]espite the length and detail in some aspects of Plaintiff's allegations, there are insufficient facts alleged in the FAC to reasonably infer Defendants' conduct prior to August 29, 2021 was similar or connected to the alleged unlawful actions thereafter." (September 29, 2025 order sustaining Defs.' demurrer to the FAC, pp.6-8.) The Court also stated that "Plaintiff's allegations regarding Defendants' alleged retaliatory actions from July to September 2022 not only lack factual specificity as to what laws/rules/regulations were violated, but also facts supporting her reasonable belief that the undefined laws/rules/regulations were violated." (*Id.* at p.8.)